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Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.211-J of 2009
(Muhammad Hanif alias Fouji versus The State)

and

Murder Reference No.254 of 2009
(The State versus Muhammad Hanif)

JUDGMENT

Date of hearing	10.02.2015
Appellant by	Ms. Nighat Saeed Mughal, Advocate
State by	Mr. Muhammad Nawaz Shahid, Deputy District Public Prosecutor
Complainant by	Mr. Pervaiz Inayat Malik & Ch. Muhammad Hanif, Advocates

Syed Shahbaz Ali Rizvi, J. This judgment shall dispose of Criminal Appeal No.211-J of 2009 titled as **Muhammad Hanif alias Fouji versus The State** filed by Muhammad Hanif alias Fouji against his conviction and sentence and Murder Reference No.254 of 2009 titled as **The State versus Muhammad Hanif** transmitted by the learned trial court for confirmation or otherwise of the sentence of death awarded to Muhammad Hanif alias Fouji (appellant), as both these matters have arisen out of the same judgment dated 20.05.2009 passed by the learned Addl. Sessions Judge, Kasur in case FIR No.747 dated 03.12.1999, offence under Section 302 & 34 PPC registered at Police Station Saddar Kasur District Kasur whereby, the appellant was convicted under Section 302(b) PPC and sentenced to death with the direction to pay Rs.1,50,000/-, as compensation to the legal heirs of

Muhammad Sharif (deceased) as envisaged under Section 544-A of the Code of Criminal Procedure, 1898 and in default thereof to undergo simple imprisonment for six months.

It is pertinent to mention here that earlier the learned trial court convicted the appellant vide judgment dated 26.06.2002 and sentenced to death which was challenged before this Court through Crl. Appeal No.280-J of 2002. A learned Division Bench of this Court while hearing the said appeal remanded the case to the learned trial court vide order dated 12.02.2009 for rewriting of the judgment. The learned trial court after hearing the arguments passed fresh judgment on 20.05.2009, hence, this appeal.

2. Brief facts of the case, as disclosed by Muhammad Babar, complainant (PW-8), in his statement (Exh-PF) on the basis of which formal FIR (Exh-PF/1) was registered, are that his father Muhammad Sharif (deceased) was a lawyer in Kasur Katchery whereas, he was a student having residence in Faqiriyawala. On 03.12.1999, he did not go to school due to sickness. His mother (Mst. Nasreen Begum PW-12) along with Abdul Qayyum (PW-15) had gone to Kasur on motorcycle whereas, Muhammad Rasheed (given up PW) and Muhammad Ramzan (PW-11) were sitting with his father in their *baithak* having chit chat. At about 09.15 a.m, Tanveer, accused (since acquitted) came there and asked his father Muhammad Sharif (deceased) to hear his mother before going to Katchery. His father (Muhammad Sharif deceased) had opposition with Muhammad Hanif (appellant) due to party faction who had got registered a false case of theft against his father (deceased) and the mother of Tanveer, accused (since acquitted). On receiving the message, his father immediately went to the house of Mst. Balqees along with Tanveer, accused (since acquitted) who did not return for some time whereupon, due to suspicion, he along with Muhammad Rasheed (given up PW) and

Muhammad Ramzan (PW-11) went to the house of Mst. Balqees. When they just reached near the shop of one Muhammad Arif, his father met them in injured condition. Meanwhile, Tanveer, accused (since acquitted) armed with .32 bore revolver, Muhammad Hanif (appellant) armed with *Chhura*, Amjad (since acquitted) and Khalil (since acquitted), opening the outer door of the house of Mst. Balqees, came out and moved towards the metalled road. He along with Muhammad Rasheed (given up PW) and Muhammad Ramzan (PW-11) brought his father to his house and administered him some water who told them that Tanveer Ahmad, Amjad and Khalil accused persons caught hold of him whereas, Muhammad Hanif (appellant) inflicted him injuries with *Chhura* but he after scaling over the wall rescued himself. Due to precarious condition of his father, they were taking him to DHQ Hospital in the car. Meanwhile, Mst. Balqees alias Foujin was standing outside her house and at the same place, his (complainant's) mother along with Abdul Qayyum (PW-15) met them on motorcycle who told that Tanveer armed with revolver, Muhammad Hanif armed with *Chhura*, Amjad and Khalil ran after them while raising lalkaras that they had finished Sharif and his family be also killed but they saved their lives. They took the injured to hospital who succumbed to the injuries on the way.

The motive behind the occurrence, as disclosed by the complainant in the FIR (Exh-PF/1), was previous enmity. The complainant further alleged that afterwards, to create false defence, the accused persons caused injuries to Mst. Balqees.

3. Muhammad Hanif alias Fouji (appellant) was arrested in this case on 21.12.1999 by Ashfaq Hussain Kazmi, Inspector (PW-16) who, on 26.12.1999, while in police custody, after making disclosure, got recovered *Chhuri* (P-6), which was taken into possession vide recovery memo Exh-PH. After completion of investigation, the

challan was prepared and submitted before the learned trial court. The learned trial court, after observing legal formalities, as provided under the Code of Criminal Procedure, 1898 framed charge against the appellant and his co-accused (since acquitted) on 12.12.2001, to which they pleaded not guilty and claimed trial.

4. In order to prove its case, the prosecution produced as many as sixteen witnesses, during the trial. Muhammad Babar (PW-8) is the complainant of the case. He along with Muhammad Ramzan (PW-11) is also the witness of dying declaration allegedly made by the deceased. Muhammad Mukhtar (PW-5) and Muhammad Ashiq (PW-7) furnished the ocular account of the occurrence. Mukhtar Ahmad (PW-5) and Shaukat Ali (PW-10) are the witnesses of alleged recovery of crime weapon at the instance of the appellant. Mst. Nasreen Begum (PW-12) and Abdul Qayyum (PW-15), were also threatened by the appellant and his co-accused after the occurrence.

The medical evidence was furnished by Dr. Tariq Bashir (PW-6) who gave secondary evidence on behalf of Dr. Arshad who conducted the post mortem examination on the dead body of deceased Muhammad Sharif.

Ashfaq Hussain Kazmi, Inspector (PW-16) is the Investigating Officer of this case. Muhammad Nasrullah, Draftsman (PW-3) prepared scaled site plan of the place of occurrence whereas, rest of the witnesses are formal in nature.

5. Learned prosecutor gave up Dr. Arshad PW having gone to Saudi Arabia whereas, Rasheed Ahmad PW was given up being unnecessary and after tendering in evidence reports of Chemical Examiner (Exh-PP & Ex-PQ), reports of Serologist (Exh-PR & Exh-PS) and that of Forensic Science Laboratory (Exh-PT), closed the case for prosecution.

6. The statement of the appellant, under Section 342 of the Code of Criminal Procedure, was recorded. He refuted the allegations

levelled against him and professed his innocence qua the infliction of injury to the deceased. While answering to a question that "*Why this case against you and why the PWs have deposed against you?*", the appellant replied as under:-

"Deceased Sharif was my relative, who started frequently to visit the house of my Bhabi Balqees Bibi, mother of my co-accused Tanveer Ahmad (Juvenile) and widow of my brother Ahmad Din (since dead) after two years of the death of my brother. The deceased Muhammad Sharif developed illicit relations with my 'Bhabi' Balees and my nephew Tanveer Ahmad complained me in this context but I suggested him that you and your mother can control deceased Muhammad Sharif and I decline my intervention. Tanveer Ahmad (Juvenile) co-accused also complained me that his fallows used to taunt, but I again decline to support him.

On the day of occurrence I was doing my job in the shop, whereas my co-accused Tanveer Ahmad (Juvenile) was sitting outside the shop, who informed me that the deceased Sharif had again come in his house, I while suggesting him that he himself could kill the deceased Sharif out of all and restrained him to keep myself away. Tanveer (Juvenile) co-accused also said that he had been restraining the deceased Sharif from visiting of his house but he did not and I advised not to kill Muhammad Sharif deceased. Thereafter I and Tanveer Ahmad entered into the Haveli of the house of occurrence, there deceased and Mst. Balqees were found in embracing condition in front of the Bathroom. They were kissing to each other. Tanveer Ahmad (Juvenile) co-accused on seeing the deceased Sharif and Balqees Bibi in 'Japha' flared up and took out a Chhuri from the folding of his Shalwar, whereas I took out 32 bore Revolver. The deceased Muhammad Sharif at the relevant time tried to scale over the wall to rescue himself from the murder. However, he was over-powered by co-accused Tanveer Ahmad (Juvenile) and inflicted Chhura blows to the deceased Muhammad Sharif. Meanwhile Mst. Balqees grappled with me and I gave consecutive shots to her, resulting injuring her, and she fell down on the ground there. Meanwhile Tanveer (Juvenile) co-accused came to me and told that he had finished Sharif deceased. Chhuri P6 was blood stained. Afterwards I and my co-accused Tanveer (Juvenile) shaltered in my shop out of fear from the complainant party who an influential one. The police also arrested me and my co-accused Tanveer from my shop, whereas Tanveer Ahmad handed over two photographs of Mst. Balqees alongwith the deceased Muhammad Sharif. We

also informed the I.O. that the deceased Muhammad Sharif was a womaniser having bad character, who had developed illicit relations with Mst. Balqees Bibi and Tanveer Ahmad co-accused had murdered the deceased Sharif out of 'Ghairat'.

I also informed the police that I had no relations with my co-accused Amjid Ali and Khalil with whom we have litigations.

All the PWs are interse related and interested witnesses who have deposed falsely against me due to the pressure of Muhammad Hanif Civil Judge, brother of deceased Sharif who had great influence in the local area."

7. The appellant neither opted to give evidence on oath as provided under Section 340(2) of the Code of Criminal Procedure, in disproof of the allegations levelled against him nor did he produce evidence in his defence.

8. The learned trial court vide its judgment dated 20.05.2009, found the appellant guilty, convicted and sentenced him as mentioned and detailed above.

9. Learned counsel for the appellant contends that the appellant has falsely been implicated in this case; that the occurrence was not witnessed by anybody; that the alleged eyewitnesses are chance witnesses and are not reliable; that there is delay of more than twenty-four hours in conducting the post mortem examination on the dead body of the deceased which falsifies the stance of the prosecution; that the alleged recovery of *Chhuri* (P-6) at the instance of the appellant is doubtful as the same was allegedly effected after twenty-three days of the occurrence; that motive has not been proved by the prosecution; that the prosecution evidence has been disbelieved qua the acquitted co-accused of the appellant and the conviction of the appellant cannot be based on the same evidence until and unless there is strong independent corroboration but no such corroboration is available in this case; that prosecution could not prove its case against the

appellant beyond any shadow of reasonable doubt; that this appeal may be accepted, the appellant may be acquitted and the Murder Reference may be answered in the negative.

10. Learned Deputy District Public Prosecutor assisted by learned counsel for the complainant opposes this appeal and contends that the appellant is nominated in promptly lodged FIR; that both the eyewitnesses have explained their presence at the place of occurrence at the relevant time and they are not the chance witnesses; that the prosecution case is fully corroborated by the medical evidence and the evidence of recovery of *Chhuri* at the instance of the appellant; that the prosecution case is further corroborated by the evidence of motive; that the case of the acquitted accused persons is distinguishable from that of the appellant as they were not assigned any injury on the person of the deceased; that the prosecution case also finds corroboration by the dying declaration made by the deceased in front of the witnesses; that the occurrence has been admitted by the appellant though with the different stance; that the prosecution has fully proved its case against the appellant; that this appeal may be dismissed and Murder Reference may be answered in the affirmative.

11. We have heard the arguments of learned counsel for the appellant, learned Deputy District Public Prosecutor assisted by learned counsel for the complainant and also gone through the record with their able assistance.

12. The case of the prosecution mainly hinges upon the testimony of Muhammad Mukhtar (PW-5) and Muhammad Ashiq (PW-7). We have noticed that both these witnesses are not the residents of the area where this occurrence took place. Admittedly, Muhammad Mukhtar (PW-5) and Muhammad Ashiq (PW-7) are residents of Taragarh and Shabbar, situated at a distance of 14/15 and 16/17 kilometers, respectively from the place of the occurrence that took place in village

Figiriyawala. The reason advanced by them for their presence at the place of occurrence that they went to meet one Abdur Rehman to recover money regarding sale of potatoes who could not meet them, upon which, they returned and stopped at the shop of the appellant to purchase cigarettes and after hearing noise, they entered into the house of occurrence through window present in the wall of shop and witnessed the occurrence, is not plausible. To substantiate their stance, said Abdur Rehman was neither produced before the police nor the learned trial court to establish their presence at the place of occurrence. No independent corroboration is available to the story of said eyewitnesses. Furthermore, after witnessing the alleged occurrence, the behaviour of Mukhtar Ahmad (PW-5) and Muhammad Ashiq (PW-7), as narrated by them, is quite unnatural. The place of occurrence is, admittedly, situated in an inhabited area. Both the witnesses, during cross examination, have stated that after coming out from the shop, they did not raise any alarm or hue and cry to inform or attract the inhabitants of the vicinity to the place of occurrence rather they stated that they went to Katchery. Mukhtar Ahmad (PW-5), during his cross examination has stated that on their way to Katchery, they sat in a tea shop for about thirty or forty-five minutes. Even after reaching the Katchery, they did not inform anybody about the occurrence except Abdur Rehman. The above portrayed behaviour of the eyewitnesses is highly improbable and unnatural. In view of above discussion, we are of the view that Muhammad Mukhtar (PW-5) and Muhammad Ashiq (PW-7) could not explain and justify the reason of their being present at the place of occurrence at the relevant time and are chance witnesses. In this view of the matter, as the statements of the witnesses are not believable and appealing to the mind, being improbable and unnatural, the same cannot be relied upon to maintain the conviction of the present appellant as is held by the Hon'ble Supreme Court of Pakistan in the

case of Haroon alias Harooni v. The State and another (1995 SCMR 1627) wherein, the Hon'ble Supreme Court was pleased to observe as under: -

"9. ...Since the facts of the two cases seldom coincide, therefore, no hard and fast rule for the appreciation of evidence can be laid down. The general rule, however, is that the statement of a witness must be in consonance with the probabilities, fitting in the circumstances of the case and also inspire confidence in the mind of a reasonable prudent man. If these elements are present, then the statement of worst enemy of an accused may be accepted and relied upon without corroboration, but if these elements are missing, then statement of a pious man may be rejected without second thought."

Same view was reiterated by the Hon'ble Supreme Court of Pakistan in the case of Muhammad Saleem v. The State (2010 SCMR 374).

Both the said witnesses are also discrepant with each other and with the contents of FIR (Exh-PF/1). A material discrepancy between the two eyewitnesses qua the actual occurrence has been noticed as Muhammad Mukhtar (PW-5) during his cross examination has mentioned as under: -

"...The deceased Sharif Advocate was then sitting in northern eastern side of the window..."

While regarding the same fact Muhammad Ashiq (PW-7) replied as under: -

"...Sharif deceased was made to sit on the southern side from the window..."

In the same way, Muhammad Mukhtar (PW-5) did not see any tree in the house of occurrence while Muhammad Ashiq (PW-7) claims that there were three trees in the courtyard. Moreover, in the FIR, it is the case of the prosecution that the occurrence took place at 09.15 a.m. whereas, according to Muhammad Mukhtar (PW-5), they reached the house of Abdur Rehman, from whom they went to receive money, at

9/9.15 a.m. whereas, Muhammad Ashiq (PW-7), during his cross examination, has stated that they reached the house of said Abdur Rehman at about 09.00 a.m. It is not humanly possible that a person, at the same time, could be present at two places. The above material contradiction also creates doubt in the veracity of their statements and makes them unreliable. They have also made dishonest improvements in their previous statements recorded under Section 161 of the Code of Criminal Procedure, 1898. They were duly confronted and the dishonest improvements made by them were brought on the record. It is by now well established principle of law that a witness who materially improves his statement, is not worthy of reliance. We have also noticed that both Muhammad Mukhtar (PW-5) and Muhammad Ashiq (PW-7) have specifically nominated all the accused by name with parentage with specific role in their statements recorded under Section 161 of the Code of Criminal Procedure, 1898 while it is admitted fact that the accused persons especially Tanveer, Amjad and Khalil were common village dwellers, previous acquaintance of whom has not even been claimed by the witnesses which creates doubt regarding the probity of their statements. Similarly, confused replies by Muhammad Mukhtar (PW-5) during the cross examination has also been observed by us and it would be advantageous to reproduce the same portions of his statement when he was cross examined by the appellant himself as under: -

“...The door of your shop is in eastern side. The door of shop was probably in middle. Volunteered, I do not remember exactly...I did not see any tree in the house of occurrence. Volunteered, I do not remember as there was any tree or not. I did not see as to whether Sharif deceased was then wearing Shalwar Qamiz or shirt Chadar. I had not seen as to what kind of clothes were worn by you at the relevant time...I saw deceased Sharif advocate on that very day. Previously Sharif Advocate deceased was somewhat known to me. Volunteered, I had seen him in the Kachchry...”

This confusion and double mindedness of the witness leads us to doubt his truthfulness. Even otherwise, entering into the house of unknown person through the window by a traveler especially when the house is situated in a populated village, having houses and shops around, is not believable narration furnished by the witnesses. There is another important aspect of the case that co-accused of the appellant namely, Tanveer, Amjad Ali and Khalil have already been acquitted. Tanveer accused was assigned the role of calling the deceased from his house and was shown at the time of occurrence armed with .32 bore pistol which was allegedly recovered from him during the course of investigation while Amjad caught hold of deceased from right hand and Khalil accused was holding him from left arm when the appellant gave *Chhura* blow. In this view of the matter, we are of the view that the evidence which has been disbelieved qua the acquitted co-accused persons cannot be believed against the appellant until and unless there is strong independent corroboration available against him but the same is lacking in this case. Guidance in this regard is respectfully sought from the case of Sheral alias Sher Muhammad v. The State (1999 SCMR 697) wherein, the Hon'ble Supreme Court of Pakistan was pleased to observe as under: -

"8. ...It is a well-settled proposition of law that when the eye-witnesses are disbelieved qua majority of the accused material corroboration is required to accept their testimony against the other accused..."

Similarly, the Hon'ble Supreme Court of Pakistan in the case of Akhtar Ali and others v. The State (2008 SCMR 6) was pleased to observe as under:-

"5. ...It is a settled law that eye-witnesses found to have falsely implicated five out of eight accused then conviction of remaining accused on the basis of same evidence cannot be relied upon without independent corroboration. See Ghulam Muhammad's case PLD 1975 SC 558, Sheral alias Sher

Muhammad's case 1999 SCMR 697 and Ata Muhammad's case 1995 SCMR 599. It is also a settled law that credibility of the ocular evidence is not divisible..."

Same view was reiterated in the cases of Muhammad Akram v. The State (2012 SCMR 440), Muhammad Ali v. The State (2015 SCMR 137) and Ali Sher v. The State (2015 SCMR 142).

There is another aspect of the case that Mst. Balqees Bibi in whose house the occurrence took place also moved an application (Exh-PO) to the police for registration of case supporting the prosecution story. She further alleged that after the death of Muhammad Sharif (deceased) at about 10.30 a.m, in connivance with her son Tanveer, accused (since acquitted), one Muhammad Majeed and her *Dewer* Muhammad Hanif (appellant) made firing at her with their respective pistols. Muhammad Majeed made first fire which landed above her chest on the neck. Then Muhammad Hanif (appellant) made three fire shots which landed on left side of front of chest, left shoulder and left arm. Muhammad Hanif (appellant) asked her that they made fire shots at her to level the case. We have observed that the prosecution has not produced Mst. Balqees Bibi before the learned trial court to substantiate this stance. Even Muhammad Ramzan and Mst. Chiragan Bibi, brother and mother of said Mst. Balqees Bibi, who have been shown as witnesses to the said incident, have not been produced before the learned trial court. Even no medico-legal report of Mst. Balqees Bibi is available on record. In this view of the matter, we are of the view that said application allegedly moved by Mst. Balqees Bibi is of no help to the prosecution case.

The prosecution has also withheld another eyewitness Muhammad Ashraf as is evident from the following part of the statement of Ashfaq Hussain Kazmi, Inspector (PW-16), the

9

Investigation Officer, who at page 78 of the paper-book has replied as under: -

“Q. by learned defence counsel.

Whether Muhammad Ashraf was eye witness of the incident?

Ans. I can so tell after looking into the file. PW is so permitted.

After consulting the file PW stated that Muhammad Ashraf was an eye witness of the occurrence. Volunteered he is so mentioned in the inspection note.

I have not mentioned his name in the clander of witnesses. It is incorrect to suggest that I have not mentioned his name in the clander of witnesses because he was not willing to support the prosecution version.”

This leads us to draw inference against the prosecution as is envisaged under Article 129(g) of the Qanoon-e-Shahadat Ordeer, 1984.

All the supra discussed facts of the case lead us to hold that no judicial certainty can be attached to the presence of the witnesses Muhammad Mukhtar (PW-5) and Muhammad Ashiq (PW-7) at the relevant time and the ocular account furnished by them doubtful, that renders their testimony untrustworthy, hence is not to be relied upon. Reliance in this respect is placed on the case of Basharat and another. v. The State (1996 SCJ 265) wherein, the Hon’ble Supreme Court was pleased to observe as under: -

“9. ...There is no judicial certainty or circumstantial guarantee about the presence of the eye-witnesses on the spot. On the other hand, there are cogent reasons to doubt that the eye-witnesses were present on the spot and seen the occurrence. So, there is no option but to exclude the ocular evidence from consideration.”

13. As per prosecution case, occurrence of this case took place at 09:15 a.m on 03.12.1999, the matter was reported to the police at

11:00 a.m. and the FIR (Exh-PF/1) was registered at 11.20 a.m. on the same day, whereas distance between police station and the place of incident, as per relevant column of FIR, is ten kilometers but post mortem examination on the dead body of the deceased was conducted on 04.12.1999 at 10:00 a.m i.e. with the delay of more than twenty-four hours after the occurrence. In this regard the prosecution has not furnished any explanation to justify the delay rather Ghulam Hussain, ASI (PW-4) who escorted the dead body and got conducted the post mortem examination has candidly stated as under: -

“Stated that on 4.12.1999 I was posted at P.S. Saddar Kasur. On the same day, I.O entrusted the deadbody of deceased Sharif s/o Hayat, Caste Arain r/p Fakiriay Wala, Kasur. then lying in the mortuary of the hospital to me alongwith necessary papers for the postmortem examination...The deadbody was entrusted to me at 9.00 a.m. on 4.12.1999...”

This reproduced part of the statement of prosecution witness reveals that the police papers were completed and handed over to the witness on 04.12.1999 i.e. the next day of the occurrence. It is repeatedly held by the Hon'ble courts that such unexplained delay is normally occasioned due to incomplete police papers necessary to be handed over to the Medical Officer to conduct the postmortem examination of the deceased which generally happens when the complainant and police are busy in consultation and preliminary inquiry regarding the culprits in such cases of un-witnessed occurrence. Hence, we are of the view that the presence of the witnesses at the scene of occurrence at the relevant time is doubtful and that crime report was recorded with ante timing after due deliberation and consultation. In this regard, reliance is placed on the case of Muhammad Riaz versus The State (2009 P. Cr. LJ 1022 Lahore) wherein, this Court has observed as under: -

“13. ...It is also not found correct that the F.I.R. had been got registered with promptitude as the occurrence had allegedly taken place at about 5-00 a.m. while the post-mortem

examination was conducted at 1-00 p.m. and there is every possibility that the intervening period was consumed in concocting a story and to await for the relatives of the deceased, who were made witnesses subsequently, otherwise, they have failed to establish their presence at the spot...”

Likewise, the Hon’ble Supreme Court of Pakistan in the case of Irshad Ahmed versus The State (2011 SCMR 1190), was pleased to observe as under:-

“3. ...We have further observed that the post-mortem examination of the deadbody of Shehzad Ahmed deceased had been conducted with a noticeable delay and such delay is generally suggestive of a real possibility that time had been consumed by the police in procuring and planting eye-witnesses and in cooking up a story for the prosecution before preparing police papers necessary for getting a post-mortem examination of the deadbody conducted...”

Same view was reiterated by the Hon’ble Supreme Court of Pakistan in the case of Khalid @ Khalidi and 2 others v. The State (2012 SCMR 327). In the circumstances of case in hand, we are of the view that the occurrence of this case was un-witnessed.

14. As regards the evidence of dying declaration furnished by Muhammad Babar, complainant (PW-8) and Muhammad Ramzan (PW-11). We have noticed that there is nothing on record except oral narration made by the said witnesses to strengthen the prosecution story regarding the alleged dying declaration made by Sharif (deceased). As per post mortem examination report, the Medical Officer who conducted the post mortem examination on the dead body of the deceased has given the probable duration between injuries and death as ‘soon after’ which negates the evidence of dying declaration allegedly made by the deceased before Muhammad Babar, complainant (PW-8) and Muhammad Ramzan (PW-11). Furthermore, it is the case of the prosecution that Sharif (deceased) told the said witnesses that after receiving the injury, he rescued his life by scaling over the wall which in view of the locale of the injury and the

probable duration between injury and death i.e. 'soon after' is quite hard to believe. Moreover, exit of the deceased as maintained by the prosecution from the place of occurrence to the street through the house of Mst. Surraya requires scaling of two walls of six feet height each as is evident from the site plan (Exh-PC), which does not look possible. Even otherwise, nothing about the availability of blood stains or trail in between the two points and especially on the allegedly scaled walls is mentioned in the site inspection note or the site plan as is reflected from the following portions of the cross examination of Muhammad Nasrullah (PW-3) and Ashfaq Hussain Kazmi, Inspector (PW-16), Investigation Officer, respectively: -

Muhammad Nasrullah (PW-3)

"...I had not seen the trail of blood in between point-A and said wall as well as on the stairs. Even I had not seen the trail of blood towards the entry gate side from point-A in the site plan. The PWs had pointed out that injured after receiving injuries entered into the house of Mst: Surraya while scaling over the wall as well as jumping from point-E, as shown in site plan. I have not shown the trail of blood in respect of the injured in site plan of the occurrence, Ex.PC and Ex.PC/1. The said wall which was scaled over was six feet in height. I have not seen the trail of blood even on the said wall nor it was pointed out by the PWs. It was pointed out to me by the PWs that injured deceased went to thoroughfare from the house of Mst: Surraya. I did not see nor it was pointed out the trail of blood on the thoroughfare."

Ashfaq Hussain Kazmi, Inspector (PW-16)

"...I had not mentioned the presence of the blood stains on stairs, common wall and outer wall of the house of Surrya Bibi in the inspection note..."

In view of above discussion, it is not safe to rely upon the said dying declaration that has already been disbelieved qua the three acquitted co-accused persons and said acquittal, undenied by the prosecution, has not even been interfered by the Hon'ble Supreme Court of Pakistan.

15. As regards, the alleged recovery of Chhuri (P-6) at the instance of Muhammad Hanif (appellant). We have noticed that the occurrence in this case took place on 03.12.1999, the appellant was arrested on 21.12.1999 whereas, blood stained Chhuri (P-6) was allegedly recovered at his instance on 26.12.1999 i.e. after twenty-three days of the occurrence. It is generally not believable that the appellant despite having the ample opportunity to wash the blood from the Chhuri would keep it as such for eighteen days till his arrest i.e. 21.12.1999. The Hon'ble Supreme Court of Pakistan in the case of Basharat and another v. The State (1995 SCMR 1735) disbelieved the evidence of blood stained Chhuri which was allegedly recovered from the accused after ten days from the occurrence. Relevant part of the said judgment at page No.1739 is reproduced hereunder for ready reference:-

“11. The occurrence took place on 20.4.1988. Basharat appellant was arrested on 28.4.1988. The blood-stained Chhuri was allegedly recovered from his house on 30.4.1988. It is not believable that he would have kept blood stained Chhuri intact in his house for ten days when he had sufficient time and opportunity to wash away and clean the blood on it...”

Therefore, we are of the view that evidence of the recovery of Chhuri (P-6) and reports of Chemical Examiner (Exh-PP) and that of Serologist (Exh-PR) are not reliable. Even otherwise evidence of recovery is merely a corroborative piece of evidence and relevant only when the direct evidence i.e. ocular account inspires confidence, which is not the situation in the present case.

16. As regards the motive part of the occurrence, we have noticed that there is nothing on the record to suggest that there was any previous enmity or ill will between the deceased and the appellant. Even there is nothing on record to suggest that there was any civil or criminal litigation pending between the parties. No witness or document in this regard is produced before the learned trial court. In

this view of the matter, we are of the view that the prosecution could not prove motive part of the occurrence against the appellant.

Insofar as the statements of Mst. Nasreen Begum (PW-12) and Abdul Qayyum (PW-15) are concerned, in view of our above observations regarding the ocular account, dying declaration etc. the evidentiary value of their testimony comes to naught.

17. Now coming to the plea taken by the appellant Muhammad Hanif in his statement recorded under Section 342 of the Code of Criminal Procedure, 1898 and put to the witnesses during their cross examination that he along with Tanveer accused (since acquitted) went to the house of Mst. Balqees Bibi and saw her in compromising position with Muhammad Sharif (deceased) upon which, Tanveer accused inflicted Chhuri blow to the deceased and he caused injuries to Mst. Balqees Bibi is concerned, we have noticed that the appellant has not produced any evidence in support of his plea. Even he did not bother to appear as his own witness as provided under Section 340(2) of the Code of Criminal Procedure, 1898 to rebut the on oath stance of the prosecution witnesses. Tanveer, co-accused who was tried separately being juvenile has already been acquitted which fact is also not denied by the learned private counsel for the complainant during the arguments. In view of above, we are of the view that the appellant remained fail to substantiate his plea and same is brushed aside.

So far as the contention raised by the prosecution that the occurrence has been admitted by the appellant in his statement recorded under Section 342 of the Code of Criminal Procedure, 1898 by the learned trial court is concerned, we are of the unanimous opinion that the prosecution cannot take benefit of the same statement to prove its case against the appellant and that it is to stand on its own legs first to prove its case beyond a shadow of any reasonable doubt. In this regard guidance can respectfully be sought from the esteemed

judgment passed by the Hon'ble Supreme Court of Pakistan in the case of Azhar Iqbal v. The State (2013 SCMR 383) wherein, the Hon'ble Supreme Court of Pakistan was pleased to observe as under: -

“2. ...It had not been appreciated by the learned courts below that the law is quite settled by now that if the prosecution fails to prove its case against an accused person then the accused person is to be acquitted even if he had taken a plea and had thereby admitted killing the deceased. A reference in this respect may be made to the case of Waqar Ahmad v. Shaukat Ali and others (2006 SCMR 1139)...”

18. After considering all the pros and cons of the case, we have come to an irresistible conclusion that the prosecution has failed to prove its case against the appellant beyond any shadow of reasonable doubt. It is, by now, well established principle of law that it is the prosecution, which has to prove its case against the accused by standing on its own legs and it cannot take any benefit from the weaknesses of the case of the defence. In the instant case, the prosecution remained fail to discharge its responsibility of proving the case against the appellant. It is also established law that if there is a single circumstance which creates reasonable doubt regarding the prosecution case, the same is sufficient to give benefit of the same to the accused, whereas, the instant case is replete with circumstances which have created serious doubts about the prosecution story. In the case of Tariq Pervez v. The State (1995 SCMR 1345), the Hon'ble Supreme Court of Pakistan, at page 1347, was pleased to observe as under:-

“5. ...The concept of benefit of doubt to an accused person is deep-rooted in our country. For giving him benefit of doubt, it is not necessary that there should be many circumstances creating doubts. If there is a circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused will be entitled to the benefit not as a matter of grace and concession but as a matter of right.”

The Hon'ble Supreme Court of Pakistan while reiterating the same principle in the case of Muhammad Akram v. The State (2009 SCMR 230), at page 236, observed as under:-

"13. ...It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right."

19. In the light of above discussion, we are of the view that the prosecution has failed to prove its case against the appellant beyond the shadow of any reasonable doubt, therefore, we accept **Criminal Appeal No.211-J of 2009** filed by Muhammad Hanif (appellant), set aside his conviction and sentence recorded by the learned trial court and acquit him from the charge levelled against him by extending him the benefit of doubt. He is in custody, be released forthwith if not required in any other case.

20. **Murder Reference No.254 of 2009** is answered in the **NEGATIVE** and the sentence of death of Muhammad Hanif (convict) is **NOT CONFIRMED**.

(Sayyed Māzāhar Ali Akbār Naqvi)
Judge

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting:

Judge
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Judge

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